IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.
Plaintiffs,
vs.
MARC M. MOSZKOWSKI
Defendant.

Case No.: 2018 CA 000543
Division: "E"

APPELLANT'S MOTION FOR SANCTIONS UNDER §57.105, FLORIDA STATUTES

Appellant, Marc Moszkowski, respectfully moves for sanctions under §57.105, Florida Statutes, against Appellees and their counsel, and states:

I. INTRODUCTION

Defendant respectfully moves for sanctions under §57.105, Florida Statutes, because Plaintiffs' "Motion to Challenge Indigent Status" was filed:

1. without any factual basis,
2. without any legal basis,
3. in bad faith, and

4. for the sole purpose of obstructing Defendant's access to appellate review.

Plaintiffs' Motion does not even attempt to meet the evidentiary burden required to overturn the Clerk's indigency determination. Instead, it relies on speculation, misrepresentations, irrelevant historical facts, and outright falsehoods—every one of which is contradicted by the record.

Worse still, Plaintiffs' own conduct directly caused the indigency they now contest. Under Article XI of DeepGulf's Bylaws, Plaintiffs had a *non-discretionary duty* to advance Defendant's legal expenses. They ignored this obligation for eight years, forcing Defendant to spend every available resource defending himself against their unauthorized claims. Plaintiffs now weaponize the very destitution they created.

Their Motion is frivolous, abusive, and sanctionable.

II. GOVERNING LEGAL STANDARD

Under §57.105(1), sanctions must be awarded when a party or attorney files a claim or motion that:

1. is not supported by the material facts, or
2. is not supported by the application of then-existing law, and

3. the party or attorney knew or should have known as much.

A motion is sanctionable if it is:

- filed to harass,
- filed to delay,
- filed for an improper purpose,
- objectively unreasonable,
- unsupported by evidence, or
- contrary to clearly established law.

Plaintiffs' Motion satisfies every criterion.

III. PLAINTIFFS' MOTION IS NOT SUPPORTED BY ANY MATERIAL FACT

A. Plaintiffs rely on ancient, irrelevant facts from 6–12 years ago

The Motion cites:

- activities since 2013,
- a single 2019 trip (before Defendant spent $83,000 on litigation),
- and historical income long since exhausted.

None of these facts support a conclusion about Defendant's financial condition in 2025.

This is the definition of a motion unsupported by material fact.

B. Plaintiffs invent facts that are demonstrably false

The Motion asserts that Defendant “retained legal counsel in France” and therefore must have financial means.

This is false.

- Counsel in France was court-appointed **because** Defendant was indigent and could not legally appear pro se.
- Plaintiffs obtained this misunderstanding from DeepGulf shareholder David Rumsey—the same Rumsey who engineered the seizure of Defendant’s property in France with the active complicity of DeepGulf's own Chairman.
- Plaintiffs never verified this assertion, nor could they.

Filing a motion based on knowingly incorrect “facts” is sanctionable.

C. Plaintiffs omit facts fatal to their argument

Plaintiffs do not dispute that:

- Defendant’s monthly income is €874.93.
- Defendant has no savings, no liquid assets, and no vehicle.

- In the past fifteen years, 71 years-old Defendant has not seen a physician but once in 2019 (to witness abdominal hernias), due to physical inability to travel.
- Defendant cannot leave his home due to indigency and medical condition.
- Defendant’s inherited property is in seizure proceedings caused by Plaintiffs’ shareholder, Rumsey, with active complicity of DeepGulf's Chairman Howard.

Plaintiffs’ Motion is factually empty—because the real facts destroy their claims.

IV. PLAINTIFFS’ MOTION MISSTATES THE LAW

A. Plaintiffs ignore the controlling standard for indigency

Indigency concerns current ability to pay, not historical financial events.

Florida law does not permit courts to deny indigency because a litigant once possessed assets that no longer exist.

B. Plaintiffs invent a “good-faith belief” test for indigency

Plaintiffs claim they possess a “good-faith belief” that Defendant is not indigent.

There is no such standard.

Beliefs are not evidence.

Legal determinations require evidence.

Filing a motion grounded on “beliefs” rather than law is frivolous.

C. Plaintiffs misrepresent the reason for the denial of remote appearance

Plaintiffs assert that the Court denied remote appearance “based on certain findings,” as if those findings proved lack of indigency.

In reality:

- The denial violated Rule 2.530.
- Defendant’s medical evidence was uncontested.
- Plaintiffs urged the Court to deny remote appearance, knowing Defendant could not attend.
- Defendant was tried in absentia as a direct result of Plaintiffs’ bad-faith advocacy.

Plaintiffs now recycle their own misconduct as “evidence” of solvency.

This is sanctionable.

V. PLAINTIFFS' MOTION OMITS THE MOST CRITICAL FACT: THEIR BYLAW OBLIGATION TO PAY DEFENDANT'S DEFENSE COSTS

A. Article XI of DeepGulf's Bylaws imposed a mandatory duty

DeepGulf's Bylaws expressly require:

- indemnification,
- advancement of defense expenses,
- for directors and officers,
- including Defendant,
- in any litigation relating to corporate activity.

The duty is mandatory, not discretionary.

B. Plaintiffs ignored their own Bylaws for eight years

Plaintiffs:

1. initiated litigation without board authorization,
2. refused to advance defense costs,
3. forced Defendant to spend approximately $83,000 on legal fees,
4. watched Defendant prevail in federal court,
5. then exploited a remand they themselves engineered,

6. and now seek to block appellate review by challenging the indigency they caused.

This is not zealous advocacy.

It is systematic abuse.

C. Plaintiffs are estopped from arguing Defendant is not indigent

They caused the indigency through:

- breach of corporate bylaws,
- bad-faith litigation,
- misrepresentations to courts,
- and procurement of default through denial of remote appearance.

Plaintiffs cannot now claim Defendant is not indigent.

VI. THE MOTION'S PURPOSE IS TO OBSTRUCT APPELLATE REVIEW

This is the core of the §57.105 violation.

A. Plaintiffs' Objective Is to Terminate the Appeal by Imposing a Financial Condition Defendant Cannot Satisfy

Plaintiffs' Motion is not based on any belief that Defendant is capable of paying the appellate filing fee. Defendant has sworn under penalty of perjury that he is indigent and cannot pay the fee, and Plaintiffs offer no evidence to the contrary. Their true objective is to force the Court to *deny* indigent status, which would require Defendant to pay the full filing fee as a prerequisite to docketing the appeal.

Because Defendant cannot satisfy that financial requirement, the appeal would be terminated before review begins. Plaintiffs thus seek to impose a condition they know is impossible for Defendant to meet, for the sole purpose of extinguishing his appellate rights. Such conduct is an abuse of process and is sanctionable under §57.105.

B. The Motion seeks to prevent an appeal

The only rational explanation is:

Plaintiffs want to stop Defendant's appeal from being filed.

They know the trial was conducted in Defendant's absence. They know the judgment rests on:

- nonexistent plaintiffs,
- time-barred claims,
- nonexistent board authorization,
- nonexistent foreign domicile,

- and an improper denial of remote appearance.

They also know the appeal is well-founded and dangerous to them.

Thus the Motion to “challenge indigency” is a thinly disguised attempt to suffocate appellate review.

C. This is precisely the litigation conduct §57.105 was designed to deter

- Filing motions with no evidentiary support
- Filing motions contrary to law
- Filing motions solely to delay or obstruct judicial review
- Filing motions intended to cause harm to an opposing party

This Motion meets every criterion.

D. Plaintiffs’ Request to “Question Defendant under Oath” Demonstrates an Intent to Harass, Not to Litigate in Good Faith

Plaintiffs’ demand for a hearing at which they may “question Defendant under oath” is itself sanctionable. Indigency determinations are not adversarial evidentiary proceedings, and Plaintiffs identify no statutory authority permitting cross-examination of a pro se indigent litigant. Their request is designed to force Defendant—who cannot travel and whose indigency is already established—into a setting where default or contempt is likely. This is an abuse of process under the plain language of §57.105(1)(b).

VII. SANCTIONS ARE NECESSARY TO DETER FUTURE ABUSE

Plaintiffs have demonstrated:

- disregard for corporate law,
- disregard for procedural rules,
- disregard for evidence,
- disregard for their own Bylaws,
- and a pattern of filing motions that burden the Courts and harass Defendant.

Without sanctions, Plaintiffs will continue using litigation as a bludgeon.

Sanctions are necessary to:

1. compensate Defendant for the time and resources required to respond,
2. deter Plaintiffs from filing further frivolous motions, and
3. protect the integrity of judicial proceedings.

VIII. PRO SE LITIGANTS ARE ENTITLED TO SEEK SANCTIONS UNDER §57.105

Defendant appears pro se because he is financially unable to retain counsel. This does not bar relief under §57.105. Florida courts recognize that §57.105 serves both compensatory and punitive purposes, and sanctions may be awarded directly to a pro se litigant or imposed independently as a monetary penalty. Defendant therefore respectfully seeks sanctions both to deter future abusive filings and to compensate him for the time and resources expended responding to Plaintiffs' frivolous Motion.

IX. RELIEF REQUESTED

Defendant respectfully requests that the Court:

1. **AWARD SANCTIONS** against Plaintiffs and their counsel under §57.105;
2. **ORDER Plaintiffs and their counsel jointly and severally liable** for all reasonable costs incurred in responding to their frivolous Motion;
3. **ISSUE a finding** that Plaintiffs' Motion to Challenge Indigent Status was filed in bad faith;
4. **GRANT all other relief** the Court deems just and proper.

Respectfully submitted this 24th day of November, 2025.

Marc Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Le Verdos
83300 Châteaudouble, France

M. Moszkowski

CERTIFICATE OF SERVICE

I hereby certify that, on this 24th day of November, 2025, a copy of this Document has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Moszkowski